

24STCV21498 24STCV21498

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C512%2C09%2F15%2F2026

Source SHA-256: 73d5f412eed96d9aed1112584e83af975b270c575efc351951f056bc76737586

Case Number: 24STCV21498 Hearing Date: September 15, 2026 Dept: 512

HEARING DATE: Tues., September 15, 2026 JUDGE/DEPT: Mkrtchyan/512

CASE NAME: Ammari

v. Southern California Edison, Co. COMP FILED: 08-23-24

et al.

CASE NUMBER: 24STCV21498

NOTICE: OK/NO

PROCEEDINGS: MOTION

FOR RELIEF FROM DEEMED ADMISSIONS; MOTION TO SET ASIDE DISCOVERY ORDERS

MOVING PARTY: Plaintiffs Sami Ammari and Cherry Walsh

RESP. PARTY: Defendants Southern California Edison

Company and Tyler Trefry

MOTION FOR RELIEF FROM ADMISSIONS

(CCP § 2033.300)

TENTATIVE RULING:

Plaintiffs Sami Ammari and Cherry Walsh's Motion

to Withdraw Deemed Admissions Pursuant to Code of Civil Procedure section

2033.300 is GRANTED.

Plaintiffs Sami Ammari and Cherry Walsh's Motion
to Set Aside and/or for Relief from the Court's March 5, 2026 and April 10,
2026 Discovery Orders Pursuant to Code of Civil Procedure section 473(b) is DENIED.

Moving party is ordered to
give notice.

RFAS MOTION SERVICE:

☒ [X]
Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ [X]
Correct Address (CCP §§ 1013, 1013a) OK

☒ [X]
16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on August 24, 2026 ☐ []
Late ☐ [] None

REPLY: Filed on
August 28, 2026 ☐ []
Late ☐ [] None

DISCOVERY MOTION SERVICE:

☐ [] Proof of Service Timely Filed (CRC,
rule 3.1300) NO

☐ [] Correct Address (CCP §§ 1013, 1013a) NO

☐ [] 16/21 Court Days Lapsed (CCP §§ 12c,
1005(b)) NO

OPPOSITION: Filed on September 1,
2026 ☐ [] Late ☐ [] None

REPLY: None filed as

of September 11, 2026 [] Late [X]

None

ANALYSIS:

I.

Background

On March 5, 2026, the Court granted six of Defendant Southern California Edison Company ("SoCal Edison")'s motions to compel initial responses to form interrogatories, special interrogatories, and requests for production from Plaintiffs Sami Ammari ("Ammari") and Cherry Wash, Inc. ("Cherry Wash") ("Plaintiffs") and imposed sanctions against Plaintiffs. (3/5/26 Order.)

On April 10, 2026, the Court granted SoCal Edison's motion to compel initial responses to form interrogatories and motion to deem requests for admission ("RFAs") admitted against Plaintiffs. (4/10/26 Order.)

On August 7, 2026, Plaintiffs filed the instant Motion to Withdraw Deemed Admissions Pursuant to Code of Civil Procedure section 2033.300 (the "RFAs Motion") and request for judicial notice.

On August 24, 2026, Defendants SoCal Edison and Tyler Treffry ("Defendants") filed an Opposition to the RFAs Motion and Evidentiary Objections.

That same day, Plaintiffs filed the instant Motion to Set Aside and/or for Relief from the Court's March 5, 2026 and April 10, 2026 Discovery Orders Pursuant to Code of Civil Procedure section 473(b) (the "Discovery Motion").

On August 28, 2026, Plaintiffs filed a Reply to the RFAs Motion.

On August 31, 2026, the Court continued the hearing on the RFAs Motion and gave notice.

On

September 1, 2026, Defendants filed an Opposition to the Discovery Motion and Evidentiary Objections.

On

September 8, 2026, the second cause of action for injunctive relief was dismissed without prejudice.

As of

September 10, 2026, no Reply to the Discovery Motion has been filed.

An untimely Reply was filed on September 14, 2026 and will not be considered.

II.

Procedural
Issues

As an initial matter, the Court notes there is no proof of service filed with the Discovery Motion demonstrating the Discovery Motion and notice of hearing were served on Defendants in any manner. However, given the timely and substantive Opposition that includes the proper hearing date and details, the Court exercises its discretion to address the Discovery Motion on the merits.

III.

Request
for Judicial Notice

In support of the RFAs Motion, Plaintiffs request the Court take judicial notice of various court records in the instant action and in other actions. (RFAs Motion, RJN, Exhs. 1-5.) The Court DENIES this request as unnecessary and/or irrelevant to the Court's determination of the RFAs Motion.

IV.

Evidentiary
Objections

RFAs Motion

In support of the Opposition,

Defendants raise three objections to the Ammari declaration filed in support of the RFAs Motion. (Opp., Evid. Objections, pp. 3-5.) The Court OVERRULES these objections.

Discovery Motion

In support of the Opposition, Defendants

raise various objections to the Ammari declaration filed in support of the Discovery Motion. (Opp., Evid. Objections, pp. 1-2.) The Court OVERRULES these objections.

V.

Legal

Standard & Discussion

A.

Motion to Withdraw Deemed Admissions

Plaintiffs

move to withdraw the deemed admissions on the grounds that Plaintiffs erroneously relied on prior counsel to timely and properly engage in discovery, including RFA responses, and did not realize prior counsel failed to so do. Plaintiffs file a declaration from Ammari in support of the RFAs Motion and accompanying exhibits.

In

Opposition, Defendants accuse Plaintiffs of bringing the RFAs Motion on false and fraudulent premises and highlight that Plaintiffs previously provided declarations earlier in the year regarding the delayed RFA responses. Defendants also contest Plaintiffs' reliance on a declaration from former counsel filed in support of the RFA Motion's accompanying declaration. Defendants submit a declaration from defense counsel in support of the Opposition as well as various exhibits.

In Reply, Plaintiffs

state they do not rely on the declaration from former counsel as authenticated testimony, and Plaintiffs' core contentions in the RFAs Motion are separate and

apart from the Cho declaration as well as the objected-to portions of the Ammari declaration. The Reply emphasizes contentions raised in the RFAs Motion as well as also provides a supplemental declaration to respond to the concerns raised in the Opposition.

Code of

Civil Procedure section 2033.300 states in relevant part: “[t]he court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party’s action or defense on the merits.” (Code Civ. Proc., § 2033.300, subd. (b), emphasis added.)

Here,

Plaintiffs’ Motion is supported by an affidavit of fault from Ammari explaining that Ammari provided responses to the subject RFAs on January 28, 2026, to Plaintiffs’ former counsel; however, Ammari did not know that Ammari’s RFA responses were not served. (RFAs Motion, Ammari Decl., ¶¶ 7-9.) Further,

Ammari states that: “Had I known that Mr. Cho had not served the RFA responses, that he was facing serious default judgments, or that he was unable to properly manage my case, I would have immediately sought new counsel and taken steps to protect my claims.” (RFAs Motion, Ammari Decl., ¶ 15.)

Finally, Ammari attests to learning of the deemed admissions when reviewing SoCal Edison’s motion for summary judgment and/or discussing the case with Plaintiffs’ new counsel and promptly tried to correct the issue through the instant RFAs Motion. (RFAs Motion, Ammari Decl., ¶¶ 17-19.) The RFAs Motion also is accompanied by an asserted declaration from Plaintiffs’ former counsel (RFAs Motion, Ammari Decl., Exh. 2.)

While the

Court acknowledges Defendants’ arguments regarding Ammari’s past declarations filed to the Court regarding the RFAs in March 2026, the Court finds the supplemental declaration filed by Plaintiffs in response to the Opposition addresses this issue. (See Opp.; Reply, Supp. Ammari Decl.) In the supplemental declaration, Ammari declares under penalty of perjury that Ammari “did not personally understand all distinctions between draft responses, finalized responses, verifications, service, supplemental responses, and responses required by court order. [Ammari] relied on my attorney to handle those procedural requirements.” (Reply, Supp. Ammari Decl., ¶ 7.) Further, Ammari states “[t]o the extent any prior declaration or communication referred to ‘pending discovery responses,’ [Ammari] did not

intend to represent that [Ammari] wanted the Requests for Admission deemed admitted, that [Ammari] agreed with the admissions, or that [Ammari] was knowingly allowing admissions to be entered against Plaintiffs. [Ammari] was relying on counsel regarding what responses remained to be finalized, verified, served, or corrected. [Ammari] understood that Mr. Cho was handling the discovery and that he would advise [Ammari] regarding what was required.” (Reply, Supp. Ammari Decl., ¶¶ 8-9.)

While

Defendants’ arguments in the Opposition are well-taken, the Court finds Ammari’s declaration demonstrates that Plaintiff’s admissions were the result of excusable mistaken reliance on Plaintiffs’ counsel to timely and properly engage in discovery. (See *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1421.) The Court finds the cases Defendants rely on in the Opposition brief to demonstrate otherwise are factually distinguishable from the instant circumstances. Moreover, the Court notes that, in other circumstances, the Court is encouraged to grant relief to clients whose lawyers may have engaged in misconduct. (See *Talbott v. Ghadimi* (2025) 109 Cal.App.5th 967, 981-983.)

To the extent Defendants challenge the Cho declaration accompanying the RFAs Motion, the Court notes Defendants fail to provide any evidence beyond speculation to assert the Cho declaration filed in support of the RFAs Motion is fraudulent. The Court may not rely on mere speculation.

Further, Defendants state substantial prejudice will ensue if the Court allows the RFAs to be withdrawn as defense counsel has incurred more than \$100,000 in fees and costs to bring a motion for summary judgment, motion for terminating sanctions, and a motion for sanctions that are all based, in part, on the deemed admitted RFAs. (Opp., pp. 16-17.) However, the Court notes motions for terminating sanctions and motions for sanctions incorporate renumeration; Defendants were awarded sanctions regarding the RFAs; Defendants represent that their pending motion for summary judgment does not entirely rely on the deemed admitted RFAs; and payment of certain fees and costs regarding the instant RFAs Motion appear to significantly remedy Defendants’ grievances.

Therefore,

the Court exercises its discretion under Code of Civil Procedure section 2033.300 to relieve Plaintiffs from the admissions. Further, Defendants shall be awarded costs, including attorney fees, in having to oppose the Motion and

appear at the hearing on the Motion. (Code Civ. Proc., § 2033.300, subd. (c); see *Rhule v. WaveFront Technology* (2017) 8 Cal.App.5th 1223.)

The Court

will decide the amount of attorney fees to be awarded to Defendants upon Defendants' noticed motion should they choose to file one.

Also, the

Court notes that the prior sanctions award regarding the RFAs is still in effect. (See 4/10/26 Order.)

B.

Motion to Set Aside Discovery Orders

Plaintiffs

request the Court set aside the 3/5/26 and 4/10/26 discovery orders, except for the portion of the 4/10/26 order regarding the deemed admitted RFAs, under Code of Civil Procedure section 473, subdivision (b).

Legal Standard

The court has broad discretion to

vacate the entry of default, default judgment, or a dismissal where the moving party timely establishes a proper ground for relief. (*Cruz v. Fagor America, Inc.* (2007) 146 Cal.App.4th 488, 495.) Code of Civil Procedure section 473, subdivision (b) contains two distinct provisions for relief from default. The first provision is discretionary and broad in scope, providing: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).)

The second provision of Code of

Civil Procedure section 473, subdivision (b) is mandatory, providing: "[T]he court shall, whenever an application for relief is made no more than six months

after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. However, this section shall not lengthen the time within which an action shall be brought to trial pursuant to Section 583.310." (Code Civ. Proc., § 473, subd. (b).)

The
general underlying purpose of Code of Civil Procedure
section 473, subdivision (b) is to promote the determination of actions on
their merits. (Even Zohar Const. & Remodeling, Inc. v. Bellaire
Townhouses, LLC (2015) 61 Cal.4th 830, 838-839.)

Timeliness

As an
initial matter, the Court notes the Discovery Motion was filed on August 24,
2026, which is less than six months from the date of both subject discovery
orders. Thus, the Motion is timely.

Analysis

Here, the
Discovery Motion is accompanied by a declaration from Ammari attesting that the
prior discovery orders were issued due to Plaintiffs' mistaken reliance on their
former counsel and
Plaintiff's health-related issues at the time of the subject discovery requests
and responses. (See Discovery Motion, Ammari Decl.)

However, the Discovery Motion and
declaration fail to specify whether Plaintiffs seek relief under the
discretionary or mandatory provision of Code of Civil Procedure section 473,
subdivision (b).

Further, the Discovery Motion and accompanying declaration fail to specify how Plaintiffs' former counsel erred and/or deviated from Plaintiffs' expectations regarding the subject discovery. Indeed, the Discovery Motion and accompanying Ammari declaration merely state that "[Ammari] understood that discovery responses were prepared in December 2025 and January 2026. [Ammari] also understood that responses were being served or had been served by Mr. Cho's office. [Ammari] did not understand at the time that Defendants would later claim that responses were not received, that objections had been waived, or that the discovery issues would result in orders compelling further responses, deemed admissions, or sanctions." (Discovery Motion, pp. 3-4, 7-8, Ammari Decl., ¶ 6.) Plaintiffs fail to provide any argument or evidence that Plaintiffs complied with providing fully finalized and proper responses to the subject discovery to their former counsel prior to the March and April discovery orders. The Court does not find the ambiguous references to discovery response preparation prior to the discovery orders demonstrates that Plaintiffs believed the discovery responses were completed and timely served by former counsel prior to the discovery orders.

Plaintiffs also fail to identify any particular mistake made by Plaintiffs' former counsel regarding the subject discovery.

Further, the Court does not find that discovery responses provided after the Court's prior orders remedies the discovery issues present at the time the Court ruled on the discovery motions.

Finally, the Court notes that the attorney declaration from Plaintiffs' former counsel accompanying the Discovery Motion is admitted by Ammari to not be independently authenticated by former counsel himself. (See Discovery Motion, Ammari Decl., pp. 4-5.)

For all these reasons, the Court DENIES the Discovery Motion.

VI.

Conclusion

& Order

For the foregoing reasons,

Plaintiffs Sami Ammari and Cherry

Walsh's Motion to Withdraw Deemed Admissions Pursuant to Code of Civil
Procedure section 2033.300 is GRANTED.

Plaintiffs Sami Ammari and Cherry Walsh's Motion

to Set Aside and/or for Relief from the Court's March 5, 2026 and April 10,
2026 Discovery Orders Pursuant to Code of Civil Procedure section 473(b) is DENIED.

Moving party is ordered to
give notice.